

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #12	CCRB Case #: 201601004	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/05/2016 12:16 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/5/2017	Precinct: 47		
Date/Time CV Reported Fri, 02/05/2016 10:51 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/05/2016 10:51 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Paul Catanzarita	13287	955798	047 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Francisco Chica	11939	955813	047 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Paul Catanzarita	Abuse: PO Paul Catanzarita damaged § 87(2)(b) s property.			A . Unsubstantiated	

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on February 5, 2016 via telephone.

On February 5, 2016, at approximately 12:16 a.m., PO Paul Catanzarita and PO Francisco Chica, from the 47th Precinct, attempted to issue § 87(2)(b) a summons for tinted windows at § 87(2)(b) § 87(2)(b) in the Bronx. § 87(2)(b) argued that his windows were not tinted and yelled out for help. PO Catanzarita then decided to remove § 87(2)(b) to the stationhouse and asked § 87(2)(b) to exit his car. § 87(2)(b) complied. PO Catanzarita allegedly knocked § 87(2)(b)'s cellphone out of his hands, causing it to fall to the ground and the screen to crack (**Allegation A**).

§ 87(2)(b) was released from the 47th Precinct stationhouse with seven summonses for § 87(2)(b) § 87(2)(b) (09 Board Review).

There is no video recording of this incident.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of April 19, 2016, § 87(2)(b) has not filed a Notice of Claim regarding this incident (**01 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b)
- PO Paul Catanzarita has been a member of the service for two years. This is PO Catanzarita's first CCRB complaint.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A- Abuse of Authority: PO Paul Catanzarita damaged § 87(2)(b)'s property.

It is undisputed that § 87(2)(b) and PO Catanzarita had a dispute about the tinted windows. PO Catanzarita told § 87(2)(b) that he was under arrest and instructed him to exit the car. § 87(2)(b) exited his car with his cellphone in his hands, and while being handcuffed, the cellphone fell and ended up on the ground.

§ 87(2)(b) stated that PO Catanzarita motioned one of his hands towards his cellphone causing it to fall out of his hand and to the ground **(04 Board Review)**. The fall resulted in a crack on the screen **(05 Board Review)**.

§ 87(2)(b), § 87(2)(b)'s brother, provided a phone statement to the CCRB. § 87(2)(b) exited his home upon hearing sirens and stood across the street where he saw officers throw § 87(2)(b)'s cellphone to the ground. Officers then handcuffed § 87(2)(b) and placed him in a marked car **(06 Board Review)**.

PO Catanzarita did not know what caused § 87(2)(b)'s cellphone to fall to the ground. PO Catanzarita did not recall grabbing § 87(2)(b)'s cellphone from his hand or slapping it out of his hand **(07 Board Review)**.

PO Chica did not see PO Catanzarita grab § 87(2)(b)'s cellphone from his hand or slap it out of his hand **(08 Board Review)**.

§ 87(2)(g) . Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date